

Terms and Conditions (main agreement)

This acceptable use policy sets forth the principles that govern the use by customers of the web-based products and services provided by LCP. This policy is designed to help protect our customers, and the internet community from irresponsible, abusive or illegal activities.

Access to and use of www.itrackprimary.co.uk, www.iasend.com, www.knowyourpupils.com, Maths Times Tables (our "Website"), whether as a guest or a registered user of our services, both within the UK and internationally is provided by LCP ("we" or "us") on the following terms:

- a) By signing our agreement form you agree to be bound by these terms, which shall take effect immediately on receipt of the agreement form. If you do not agree to be bound by all of the following terms, please do not sign our agreement form and contact LCP.
- b) LCP may change these terms from time to time and so you should check these terms for the latest version on the relevant website.

Accessing our website(s)

- a) Access to our Website is permitted on a temporary basis, and we reserve the right to withdraw or amend the service we provide on our Website without notice (see below). We will not be liable if for any reason our Website is unavailable at any time or for any period.
- b) From time to time, we may restrict access to some parts of our site, or the entire site, to users who have registered with us. We will not be liable, if for any reason, our Website is unavailable at any time or for any period.
- c) You are responsible for making all arrangements necessary for you to have access to our site. You are also responsible for ensuring that all persons who access our Website through internet connections are aware of these terms, and that they comply with them.
- d) We aim to update our Website regularly, and may change the content at any time. If the need arises, we may suspend access to our sites, or close them indefinitely. Where possible we will try to give advance warning but shall not be obliged to do so. Any of the material on our Website may be out of date at any given time, and we are under no obligation to update such material.
- e) We take all reasonable steps to ensure that our Website is available 24 hours every day, 365 days per year. However, websites do sometimes encounter downtime due to server and, other technical issues, therefore we will not be liable if our Website is unavailable at any time.
- f) Our Website may be temporarily unavailable due to issue such as system failure, maintenance or repair or for reasons beyond our control. Where possible we will try to give visitors and users advance warning of maintenance issues but shall not be obliged to do so.
- g) Provided you have paid for the period of your subscription, then you will be granted access to the site for the period.

Passwords, usernames and security

a) If you are provided with a user identification name, password and any other information as part of our security procedures then you must treat such information as confidential, and you must not disclose it to any third party. We have the right to disable any user identification name and password, whether chosen by you or allocated by us, at any time, if in our opinion you have failed to comply with any of the provision of these terms of use.

Our intellectual property rights

- a) We are owner of the licensee of all intellectual property rights on our site, and in the material published on it. Those works are protected by copyright laws and treaties around the world. All such rights are reserved.
- b) You may not disassemble, decompile, reverse engineer, download, post, broadcast, transmit, make available to the public, or otherwise use our site's content in any way except for your own personal, non-commercial use. You also agree not to adapt, alter or create a derivative work from any aspect of our sites' content.
- c) You may print off any may download extracts of any page(s) from our Website for your personal reference and may draw the attention of others within your organisation to material posted on our sites.
- d) Our status as the Publishers of material on our Website must be acknowledged
- e) You must not use any part of the materials on our Website for commercial purposes without obtaining a licence to do so from us.
- f) If you print off, copy or download any part of our Website in breach of these terms of use, your right to use our Website will cease immediately and you must, at our request, return or destroy any copies of the materials you have made.

Reliance on information we have posted

a) Commentary and other materials posted on our Website are not intended to amount to advice on which reliance should be placed. We therefore disclaim all liability and responsibility arising from any reliance placed on such materials by any user to our site, or by anyone who may be informed of its contents.

Renewals Process

a) Licences shall be automatically renewed for successive licence terms of the same duration as the Initial Licence Term (each a Renewal Licence Term), unless: either party notifies the other of termination, in writing, at least 90 days before the end of the Initial Licence Term or any Renewal Licence Term, in which case the subscription shall terminate upon the expiry of the Initial Licence Term or Renewal Licence Term as applicable. iTRACK licenses are available for durations of 1, 2 and 3 years and will attract a discount if entered into for 2 or 3 years.

A further discount is available for 2- and 3-year contracts that are paid in full at the start of the license period.

Termination

a) Licenses shall continue until terminated by either Party of not less than ninety (90) days prior written notice. Refunds will not be issued for any part of a subscription not completed.

Cancellation

a) Subscriptions are ongoing and will continue to be charged unless cancellation is received at least ninety (90) days prior to the end of the current subscription renewal date. Reminders are sent out prior to this date.

b) Any cancellation of services should be in writing.

Our liability

a) LCP shall not be liable for any of the following losses or damage (whether such damage or losses were foreseen, foreseeable, known or otherwise):

- a. Loss of revenue or anticipated profits;
- b. Loss of business;
- c. Loss of opportunity;
- d. Loss of goodwill or injury to reputation;
- e. Losses suffered by third parties;
- f. Wasted management or office time;
- g. Any indirect, consequential, special or exemplary damages arising from the user of our Website regardless of the form of action.

b) We will not be responsible, or liable to any third party, for the content or accuracy of the any materials posted by you or any other user of our sites.

Viruses, hacking or other offences

a) When using our Website, you shall not post or send to or from our Website any material:

- a. For which you have not obtained all necessary consents;
- b. That is discriminatory, obscene, defamatory, liable to incite racial hatred, in breach of confidentiality or privacy, which may cause annoyance or inconvenience to others, which encourages or constitutes conduct that would be deemed a criminal offence, give rise to a civil liability, or otherwise is contrary to the law in the United Kingdom;
- c. Which is harmful in nature including, and without limitation, computer viruses, Trojan horses, corrupted data, or other potentially harmful software or data.

b) Breaching the provision above means you would commit a criminal offence under the Computer Misuse Act 1990. We will report any such breach to the relevant law enforcement authorities and we will co-operate with those authorities by disclosing your identity to them. In the event of such a breach, your right to use our Website will cease immediately.

c) We will not be liable for any loss or damage caused by a distributed denial-of-service attack, viruses or other technologically harmful material that may infect your computer equipment, computer programs, data or other proprietary material due to your use of our Website or to your downloading of any material posted on it, or on any website linked to it.

Website links to and from our site

a) Any links to third party websites located on our Website are provided for your convenience only. We have not reviewed each third-party website and have no responsibility for such third-party websites or their content. We do not endorse the third-party websites or make representations about them or any material contained in them. If you choose to access a third-party website linked from our Website, it is at your own risk.

b) If you would like to link to our Website, you may only do so on the basis that you link to, but do not replicate, any page on our Website, and subject to the following conditions:

- a. You do not in any way imply that we are endorsing any services or products unless this has been specifically agreed with us;
- b. You do not misrepresent your relationship with us or present any false information about us;
- c. You do not link from a website that is not owned by you;
- d. Your website does not contain content that is offensive, controversial, infringes any intellectual property rights or other rights of any other person or does not comply in any way with the law in the United Kingdom.

Governing Jurisdiction

This legal notice shall be governed by and construed in accordance with English law. Any dispute(s) arising in connection with this Legal Notice are subject to the exclusive jurisdiction of England and Wales.

Notice

a) Notices under this Agreement will be in writing and sent to LCP's address below. They may be sent and will be deemed received:

- a. By first-class post: two Business Days after posting;
- b. By hand: on delivery;
- c. By email to support@lcp.co.uk: on receipt with confirmed receipt of delivery by LCP.

LCP, 3 Benford Court, Lower Cape, Warwick, CV34 5DA
Tel: 01926 886914 Email: Support@LCP.co.uk

We agree to the above to Terms and Conditions.

Name of School, MAT or Institution

The Primary First Trust

Address

The white House
Clifton Marine Parade
Gravesend

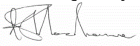
Postcode

DA11 0DY

Name of authorised signatory

Andrew Moorhouse - Primary First Trust

Signature

DocuSigned by:

6CB018AB55124F8...

Position of authorised signatory

Chief Executive officer

Contract Start Date: 01/09/2023

Contract Term: 3 Years

Expiry Date of Contract: 31/08/2026

This Data Processing Agreement is for Primary First Trust schools to use our products, schools within the trust currently are as follows but any new schools added to the Trust will be able to use our products.

Barnehurst Infant and Junior School
Cuxton Infant and Junior School
Lessness Heath Primary School
Mayplace Primary School
Springhead Park Primary School
Wainscott Primary School
Wayfield Primary School
Westcourt Primary School

Invoice has been agreed to be paid upfront and will be sent separately.

Data Processing Agreement

This Data Processing Agreement ("Agreement") is between:

(Name of School, MAT or Institution)

The Primary First Trust

("the Data Controller")

AND Language Centre Publications Limited (trading as LCP) in England and Wales with company number **02832215** whose registered office is LCP, 3 Benford Court, Lower Cape, Warwick, CV34 5DA, ("the Data Processor"). **ICO registration number Z9442686.**

Background

- (A) This Agreement is supplemental to the main agreement between the Data Processor and the Data Controller for the provision of Services pursuant to the Data Processor's standard Terms of Service (Main Agreement) and introduces further contractual provisions to ensure the protection and security of data passed from the Data Controller to the Data Processor for processing or collected by the Data Processor on behalf of the Data Controller.
- (B) This Agreement exists to comply with the requirements of the UK GDPR and the Data Protection Act 2018.

It is agreed as follows:

1. Definitions and Interpretations

"Act" means the Data Protection Act 2018.

"Authorised Person" means the authorised signatory of this document for and on behalf of your school, MAT or Institution.

"CTF" means Common Transfer File, used for transferring data.

"Data Subject" means the identified or identifiable individual to whom Personal Data relates.

"Force Majeure" means an event beyond the control of either of the parties to this Agreement including, but not limited to, fire, strikes, insurrection or riots, embargoes, container shortages, wrecks or delays in transportation, inability to obtain supplies and raw materials, pandemic or epidemic, requirements or regulations of any civil or military authority.

"Insolvent" means enters into an arrangement, compromise, or composition in satisfaction of its debts (excluding a scheme of arrangement as a solvent company for the purposes of amalgamation or reconstruction); or without a declaration of solvency, it passes a resolution or makes a

determination that it be wound up; or it has a winding up order of bankruptcy order made against it; or it has appointed an administrator or administrative receiver.

"Personal Data" means any data processed pursuant to the Main Agreement that relates to an identified or identifiable natural person and includes the data set out in the Schedule to this Agreement.

"Personnel" means the personnel of the Data Processor including but not limited to its agents, consultants, directors and employees.

"Processing" means any operation or set of operations which is performed upon personal data, (whether or not by automatic means) including collection, recording, organisation, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction. Such processing may be wholly or partly by automatic means or processing otherwise than by automatic means of personal data which form part of a filing system or one intended to form part of a filing system. A filing system shall mean any structured set of personal data which are accessible according to specific criteria, whether centralised, decentralised or dispersed on a functional or geographic basis.

"Services" are the services provided under the Main Agreement.

"School" means your school, the Data Controller.

"Software" means iTRACK Primary, iASEND and KnowYourPupils.

"UK GDPR" the United Kingdom General Data Protection Regulation (Retained Regulation (EU) 2016/679)'.

"User" means any staff member who is given access to the Software by the Data Controller.

"Working Days" means any day (excluding Saturdays, Sundays, and bank or public holidays).

2. **Consideration**

2.1 In consideration of the Data Controller fulfilling its obligations under this Agreement and engaging and paying for the Services the Data Processor shall comply with the obligations imposed on it under this Agreement without prejudice to the obligations imposed upon either party by law.

2.2 In consideration of the Data Processor fulfilling its obligations under this Agreement and providing the Services, the Data Controller shall comply with the obligations imposed on it under this Agreement without prejudice to the obligations imposed upon either party by law.

3. Purpose of Processing

3.1 The Data Processor shall process the Personal Data it receives from the Data Controller solely on the express documented instructions of the Data Controller for the purposes of delivering and supporting the Services purchased by the Data Controller and for no other purpose except with the express written consent of an Authorised Person of the Data Controller.

4. Security Obligations of the Data Processor

4.1 In processing Personal Data under this Agreement the Data Processor shall:

4.1.1 Only process Personal Data to the extent necessary to provide the Services and in accordance with documented instructions from the Data Controller from time to time or as otherwise required by law and for no other purposes whatsoever. The Data Processor shall inform the Data Controller of any such legal requirement before the processing takes place, unless the law prohibits such information on important grounds of public interest. The Data Processor shall also inform the Data Controller if any instruction infringes the UK GDPR or the Act;

4.1.2 Ensure that its Personnel does not disclose, publish or use any of the Personal Data to any third party except as defined by clause 4.1.3;

4.1.3 Ensure that Personal Data is only disclosed to or processed by its Personnel to the extent reasonably required in order for the Data Processor to fulfil its obligations under this Agreement and to ensure that its Personnel are informed of the confidential nature of the Personal Data and undertake to comply with the obligations of the Data Processor under this Agreement;

4.1.4 Ensure that its Personnel are under a duty, contractual or otherwise, to keep Personal Data confidential;

4.1.5 Not engage any third party or sub-contractor to process the Personal Data without prior specific or general written authorisation of the controller. In the case of general written authorisation, the Data Processor shall inform the Data Controller of any intended changes concerning the addition or replacement of other third parties or sub-contractors, thereby giving the Data Controller the opportunity to object to such changes;

4.1.6 If the Data Processor engages a third party or sub-contractor to carry out specific processing activities on behalf of the Data Controller, the same data protection obligations as are set out in this Agreement shall be imposed on that third party or sub-contractor by contract. If that third party or sub-contractor fails to fulfil its data protection obligations, the Data Processor shall remain fully liable to the Data Controller for the performance of the third party's or sub-contractor's obligations;

4.1.7 Not transfer the Personal Data outside the UK unless the following conditions are fulfilled:

- i) The Data Controller or the Data Processor has provided appropriate safeguards in relation to the transfer (whether in accordance with UK GDPR Article 46 or the Data Protection Act 2018 Part 3 Chapter 5 75(1)) as determined by the Controller;
- ii) The Data Subject has enforceable rights and effective legal remedies;
- iii) The Processor complies with its obligations under the Data Protection Legislation by providing an adequate level of protection to any Personal Data that is transferred (or, if it is not so bound, uses its best endeavours to assist the Controller in meeting its obligations);

4.1.8 Ensure that it implements appropriate technical and organisational measures in such a manner that processing will meet the requirements of UK GDPR and the Act, ensure the protection of Data Subjects and protect the Personal Data against unauthorised or unlawful processing, accidental loss, destruction, damage, alteration or disclosure. Such measures shall be appropriate to the harm which might result from any unauthorised or unlawful processing, accidental loss, destruction, damage, alteration or disclosure;

4.1.9 Report any breach of the security and safe keeping of the Personal Data or other similar problem to the Data Controller promptly and without undue delay;

4.1.10 The Data Processor will ensure that secure password controls are put in place to ensure that only Personnel who are permitted by the Authorised Person can access the Software and that Personnel permitted to access the Software are only able to access the level of information specified by the Authorised Person.

4.2 The Data Controller and its Users (as applicable) shall ensure that they keep a secure password for their use of the Software, that such password is changed regularly and that each authorised user shall at all times keep their password confidential.

4.3 The Data Controller shall use its best endeavours to prevent any unauthorised access to, or use of, the Services and notify the Data Processor immediately of any such unauthorised access.

4.4. Upon request of the Data Controller, the Data Processor will make available all of the information necessary to demonstrate compliance with the UK GDPR and the Act and allow and contribute to audits and inspections conducted or mandated by the Data Controller.

4.5 The Data Controller will delete any User from the Software as soon as the User's employment is terminated from the School.

4.6 The Data Processor will assist the Data Controller with appropriate technical and organisational measures for the fulfilment of the Data controller's obligation to respond to Data Subject's requests to exercise their individual rights under the UK GDPR. This assistance will include:

4.6.1 Notifying the Data Controller within 10 Working Days if it receives a request from a Data Subject to enforce any of the data subject's individual rights under the UK GDPR and (at the same time) providing full details and a copy of such request;

4.6.2 Notifying the Data Controller within 10 Working Days of any complaint received by it from a Data Subject about the processing of his or her Personal Data and providing the Data Controller with full details and a copy of the complaint and ensuring that it does not make any admissions or do or omit to do anything without the prior written consent of the Data Controller that may prejudice the Data Controller's ability to respond to or defend any such complaint;

4.6.3 Providing reasonable assistance to the Data Controller in dealing with any request or any complaint referred to in Clauses 4.6.1 and 4.6.2;

4.6.4 Providing the Data Controller, within 10 Working Days of the date of such request or complaint from the Data Subject, with such information that it holds and that the Data Controller may reasonably require regarding the provision of the Services and the performance by the Data Processor of its obligations under and pursuant to the terms of this Agreement to the extent that they relate to the request or complaint;

4.6.5 Where the request is a subject access request, providing the Data Controller, within 10 Working Days of the date of such request from the Data Subject, with any Personal Data that it holds to enable the Data Controller to respond to the request.

5. Compliance

5.1 The Data Processor will assist the Data Controller in ensuring compliance with its obligations under articles of the UK GDPR and the Act relating to: security of processing; notification of a Personal Data breach to the supervisory authority; communication of a Personal Data breach to the Data Subject; data protection impact assessments; and prior consultation with the supervisory authority where a data protection impact assessment indicates that the processing would be high risk in the absence of mitigation.

5.2 The Data Processor acknowledges that the Data Controller, if it is government-maintained school or academy in the United Kingdom, is subject to the Freedom of Information Act 2000 ("FOI") and it shall:

5.2.1 Following notification from the Data Controller that it has received a request from a third-party seeking information under FOI, send to the Data Controller within 10 Working Days of such notification, such information as may be requested by the Data Controller and, which the Data Processor holds on behalf of the Data Controller under this Agreement and that the Data Processor reasonably believes is relevant for the purposes of such FOI request;

5.2.2 Not respond to any request for information (including Personal Data) received by it under FOI (or any similar or equivalent legislation relating to freedom of information and in force in the jurisdiction to which it is subject) that it holds on behalf of the Data Controller under this Agreement without prior consultation with the Data Controller;

5.3 The Data Processor will promptly and properly deal with and respond to any and all reasonable requests and enquiries made by the Data Controller relating to its Processing of the Personal Data.

6. Indemnity, Insurance, Liability and Warranties

6.1 Subject to the provisions of the Main Agreement, the Data Processor is liable for and shall indemnify the Data Controller against any action, loss, damages, costs, compensation, fines, penalty or awards made against the Data Controller as a result of the Data Processor's or its sub-contractor's breach of the Agreement.

6.2 The Data Processor shall hold and ensure that it continues to hold throughout the term of this Agreement a satisfactory level of and appropriate insurance cover with a reputable insurer to cover the Data Processor's obligations to the Data Controller under this Agreement including but not limited to public liability insurance of at least £2 million pounds. The Data Processor will on a request of the Data Controller disclose satisfactory evidence that it holds such insurance.

7. Transmission of Personal Data

7.1 The parties agree that when Personal Data is transferred between them it will be done in a manner and format which complies with the UK GDPR and the Act and any relevant good practice guidance including but not limited to secure FTP transfer and encrypted email.

8. Return or Destruction of Personal Data

8.1 Immediately upon termination of this Agreement the Data Processor shall cease to access, use or process (other than by storing) any of the Personal Data unless agreed between both parties;

8.2 The Data Processor will delete or return to the Data Controller (at the option of the Data Controller) all the Personal Data within a reasonable time after termination of the Main Agreement and delete existing copies unless storage of the Personal Data is required by law. The Data Processor retains the right to make a charge for extracting this data if the quantities and work involved are likely to be significant. While the Main Agreement remains in effect, the Data Processor will delete the Personal Data of pupils after 3 years from the date of their final year end at the school. In other words, the school's historic data is retained for 3 years after the pupils have left in the final year.

9. Termination

9.1 This agreement will remain in full force and effect so long as:

9.1.1 the Main Agreement remains in effect; or

9.1.2 the Data Processor retains any Personal Data related to the Main Agreement in its possession or control (Term).

9.2 Any provision of this Agreement that expressly or by implication should come into or continue in force on or after termination of the Main Agreement in order to protect Personal Data will remain in full force and effect.

9.3 The Data Controller may terminate this Agreement immediately if the Data Processor fails to comply within a reasonable time with any reasonable security recommendation made by the Data Controller.

9.4 The Data Controller may terminate this Agreement if the Data Processor, including any of its Personnel or anyone acting on behalf of the Data Processor, does any of the following things:

- a) commits an offence under the Bribery Act 2010;
- b) commits any fraud in connection with this or any other contract.

10. Other provisions

10.1 This Agreement shall be governed by the law of England and the parties submit to the exclusive jurisdiction of the English courts for all purposes connected with this Agreement.

10.2 Failure by either party to exercise or enforce any rights available to that party or the giving or forbearance, delay or indulgence shall not be construed as a waiver of that party's rights under this Agreement.

10.3 If any term or provision of this Agreement shall be held to be invalid or unenforceable in whole or in part then this shall not affect the enforceability of the remainder of this Agreement. The parties agree to substitute for any invalid or unenforceable provision a valid and enforceable provision which achieves to the greatest extent possible the economic, legal and commercial objectives of the invalid or unenforceable provision.

10.4 This Agreement constitutes the entire understanding between the parties and shall supersede all prior agreements, negotiations and discussions between the parties in relation to the subject matter of this agreement.

10.5 Any communication or Notice required to be given under this Agreement shall be in writing and shall be sent to the other party at the address given within this Agreement by first class mail and confirmed by e-mail within 24 hours of posting. Notices shall be deemed to have been delivered in 3 business days after posting.

10.6 Neither party shall be liable for any breach of its obligations under this Agreement resulting from an event of Force Majeure.

10.6.1 Each of the parties agrees to give notice within a reasonable time to the other upon becoming aware of any event of Force Majeure giving the details of the circumstances giving rise to the event;

10.6.2 If a default due to any event of Force Majeure shall continue for more than 4 weeks, then the party not in default shall be entitled to terminate this Agreement. Neither party shall have any liability to the other in respect of the termination of this agreement as a result of an event of Force Majeure.

10.7 No variation of this Agreement shall be valid unless it is in writing and signed by or on behalf of each of the parties.

Please Sign and Date

Signature

DocuSigned by:

 6CB018AB55124F8...
Name

Andrew Moorhouse - Primary First Trust

Date

15 June 2023

Signed by PHILIP BEALE
 for and on behalf of LCP



Managing Director

The Schedule

The table below records information about the Processing which will take place pursuant to the Main Agreement.

Description	Details
Duration of the processing	The Processing will last for the duration of the Main Agreement which is open-ended subject to the agreed subscription length, any renewal of the subscription, or termination.
Purpose, nature and subject-matter of the processing	Importing pupil data via CTF uploaded by the Data Controller or by electronic link such as provided by Wonde (for the purpose of pupil tracking and analysis); Recording pupil attainment each year (for the purpose of monitoring progress and attainment); Organising pupil information via filters i.e., SEND, EAL (for the purpose of monitoring attainment and progress for different groups); Retrieving information for the purpose of reporting pupil attainment and progress to Parents, Ofsted, Governors and Local Authorities.
Type of Personal Data	Pupil names, Assessment Data, Attendance, UPNs, Date of Birth, Classes, Gender, SEN, Pupil Premium Eligibility, EAL, FSM, LAC
Categories of Data Subject	Pupils